

Tamil Nadu Legislator's Pension Rules, 1977

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State of Tamilnadu- Act

Tamil Nadu Legislator's Pension Rules, 1977

TAMILNADU

India

Tamil Nadu Legislator's Pension Rules, 1977

Rule TAMIL-NADU-LEGISLATOR-S-PENSION-RULES-1977 of 1977

Published on 31 January 1977

Commenced on 31 January 1977

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Tamil Nadu Legislator's Pension Rules, 1977

Published vide Notification No. G.O. Ms. No. 250, Public (Elections-7), dated 31st January 1977

G.O. Ms. No. 250, Public (Elections-7), dated 31st January 1977. - In exercise of the powers conferred by section 12-B read with section 14 of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the Governor of Tamil Nadu hereby makes the following rules: -

1.

Short title and commencement.

(1)

These rules may be called the Tamil Nadu Legislator's Pension Rules, 1977.

(2)

They shall be deemed to have come into force on the 9th December 1975.

2.

Definition.

- In these rules, unless the context otherwise require, -

(a)

"Act" means the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951);

(b)

"Assembly" means the Tamil Nadu Legislative Assembly;

(bb)

"Authorised Officer" means an Officer authorised by the Secretary to claim pension;

(bbb)

["Bank" means a Nationalised Bank.

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

Explanation. - For purposes of this clause, "Nationalised Bank" means corresponding new Bank as defined in the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (Central Act 5 of 1970);]

(c)

["Council" means the Tamil Nadu Legislative Council which was abolished by the Legislative Council (Abolition). Act, 1986 (Central Act

40 of 1986

);]

[Vide G.O. Ms. No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

(cc)

["Family Pensioner" means a person who is eligible to receive family pension under sub-section (2-B) of section 12-B of the Act;]

[Vide G.O. Ms. No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(d)

"Form" means a Form appended to these rules;

(dd)

["Government" means the Government of Tamil Nadu;]

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

(e)

[Explanation. - On and from the 1st day of November 1986 "the House" shall mean the Tamil Nadu Legislative Assembly;]

[Vide G.O. Ms. No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

(ee)

["Member" means the member of the assembly;]

[Vide G.O. Ms. No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(f)

"Pensioner" means a person who is eligible to receive pension, under sub-section (1) of the section 12-B of the Act;

(g)

"Rules" means the Tamil Nadu Legislator's Pension Rules, 1977; and

(h)

"Secretary" means the Secretary to the Tamil Nadu Legislative Assembly.

3.

Sanctioning authority.

- The Secretary shall be the authority competent to sanction pension to the persons entitled under the Act.

4.

[Application.

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

- The application for the grant of pension under these rules shall be made to the Secretary in Form I. The application shall be accompanied by three copies of the passport size photograph of the person and four copies of his specimen signature duly attested by a person authorised by the Bank in which his pension is to be credited or by an Officer of any

State or the Central Government having a seal of Office. For revival or revision of pension, the person shall send an application to the Secretary:

Provided that all applications for grant, revival or revision of pension shall be made within a period of one year from the date of eligibility. If any application is received after the said period, sanction shall take effect only from the month in which the application is made:

[Provided further that if the Secretary is satisfied that there are good and sufficient reasons for not making the application for the grant, revival or revision of pension in time, he may order that the sanction shall take effect on and from the date of eligibility:]

Provided also that the period of limitation for arrear claims of pension shall be three years from the date on which the amount claimed first becomes due for payment. Such payment shall be made only after investigation and after effecting a cut of fifteen per cent.

[Explanation. - The application shall be sent to the Secretary. In case, a pensioner is re-elected or nominated to the Assembly or Parliament or any State Legislature, the pension shall be suspended and it shall be revived or revised, as the case may be, on the basis of the total duration of membership, on his ceasing to be a Member, by the Secretary.]

[Vide G.O. Ms. No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

]

5.

Sanction of pension.

- On receipt of the application for grant, revival or revision of pension and on being satisfied about the eligibility of the applicant for the pension in accordance with section 12-B of the Act, the Secretary shall make an order in Form II or Form III, for sanctioning, reviving or revising the pension, as the case may be, and communicate the order to the person concerned and to the Accountant-General, Chennai, for purposes of audit.

Explanation. - For purposes of calculating the total period of membership, a month shall be reckoned as a calendar month or thirty days.

5A.

Suspension of pension.

- If the payment of pension is suspended under the Act, the Secretary shall communicate an order to that effect in Form IV to the pensioner and to the Accountant-General, Chennai.

6.

Claim and payment of pension.

- Pension shall be claimed by the Authorised Officer without any claim being preferred by the pensioner, in Form V by about the 25th of every month and credited to the accounts of the pensioner in the Bank in the month subsequent to the month to which it relates. The Bank shall furnish a receipt for the amount received by means of cheque:

[Provided that if any pensioner desires to contribute whole or any part of the pension, in writing to a Fund sponsored by the State, or the Central Government, the pension shall be claimed by the Authorised Officer and the amount of such contribution shall be credited to that Fund.]

[Vide G.O. Ms. No. 1435, Public (Establishment-I), dated the 5th September 1988.]

6A.

Indemnity bond by the bank.

- The Bank shall execute an indemnity bond in favour of the Governor of Tamil Nadu to indemnify the Government from and against any loss or damage suffered or incurred for crediting the pension to a wrong account or after the demise of a pensioner.

6B.

Declaration by pensioner.

- Every pensioner shall furnish a declaration and a [Verification Certificate]

[Vide G.O. Ms.No. 759, Public (Establishment-I and Legislature), dated the 19th August 1994.]

obtained from the Bank in which he is having the account or from an Officer of any State, or the Central Government having a seal of office in Form VI to the Secretary direct, or through the Bank in which his pension is credited, on or before the 31st March of every year. If such a declaration and a verification certificate are not furnished within a period of one year calculated from the first day of April every year, subsequent payment of pension shall take effect only from the month of receipt of such declaration and verification certificate.

7.

Change of address.

- It shall be the duty of the pensioner to intimate the change, if any, of his residence lasting for more than three months, to the Secretary.

8.

Date of Payment of pension.

- The pension sanctioned under these rules shall be payable from the date specified in the order and shall not be commuted for lump sum. The pension shall become due for payment only on expiry of the month to which it relates.

9.

Death of pensioner.

- In the event of the death of the pensioner, the amount of pension due till the date of his death, including unpaid arrears, shall be paid to his legal heir.

9A.

[Family pension.

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(1)

A Member/Pensioner shall furnish the details of his/her family in Form VII indicating the names of his/her family as defined in subsection (2-B) of section 12-B of the Act, for family pension.

(2)

[The family of a deceased Member/Pensioner, who is entitled to family pension under sub-section (2-B) of section 12-B of the Act shall apply in form VII along with the particulars in Form IX.]

(3)

[In the event of death of a Member/Pensioner, the Secretary, shall send a letter to the family of the deceased Member/Pensioner requesting him/her to apply for the family pension.]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(4)

[The period for which family pension is payable shall be as follows: -

(i)

Wife in case of male member/pensioner or husband in the case of a female member/pensioner up to the date of death or remarriage, whichever is earlier;

(ii)

Son who has not attained the age of twenty one years and unmarried daughter who has not attained the age of twenty four years including such son and daughter adopted legally;

(iii)

Father and mother of the unmarried member / pensioner till their death.]

(5)

[(a) (i) Where family pension is payable to more widows than one, the family pension shall be paid to widows in equal shares.

(ii)

On the death of a widow, her share of the family pension shall become payable to her eligible child:

Provided that if the widow is not survived by any child, her share of the family pension shall be payable to the surviving widows in equal share or if there is only one surviving widow it shall be payable in full, to such widow.

(b)

Where the deceased member/pensioner is survived by a widow but has left behind the eligible child or children from another wife, who is not alive, the eligible child or children shall be entitled to the share of family pension which the mother would have received if she had been alive at the time of death of the pensioner:

Provided that on the share or shares of family pension payable to child or children or to widow or widows, ceasing to be payable, such share or shares shall be payable to other widow or widows and or to other child or children otherwise eligible, in equal shares, if there is only one widow or child, in full, to such widow or child.

(c)

Where the deceased member/pensioner is survived by a widow, but has left behind eligible child or children from a

divorced wife or wives, the eligible child or children of the divorced wife or wives shall be entitled to the share of family pension which divorced wife or wives would have received at the time of death of the member/pensioner had she not been divorced:]

Provided that on the share or shares of family pension payable to such a child or children or to widow or widows ceasing to be payable such share or shares shall be payable to the other widow or widows or to other child or children otherwise eligible, in equal shares, if there is only one such widow or child, in full, to such widow or child.

(6)

(i)

Except as provided in sub-rule (5), the family pension shall not be payable to more than one member of the family at a time.

Explanation. - For the purpose of this rule, the twins born at a single birth shall be treated as of the same age and made eligible for family pension in equal shares.

(ii)

If a deceased member/pensioner leaves behind a widow or widower, the family pension shall become payable to the widow or widower, failing which to the eligible child.

(iii)

(a)

If sons and unmarried daughters are alive, the eligible male or female child will be entitled for family pension in the order of their birth, irrespective of the sex and the immediate younger of him or her will be eligible for family pension only after the elder above him or her become ineligible for family pension.

(b)

In the case of twins family pension is payable to such twins in equal shares. In the event of any one of the children ceasing to be ineligible for family pension, his or her share of family pension will become payable to the other such child and when both such children become ineligible for family pension the family pension will become payable to the next eligible child or twins as the case may be.

7. [Where a deceased member/pensioner leaves behind more children than one, the eldest eligible child shall be entitled to the family pension for the period mentioned in clause (ii) of sub-rule (5) and after the expiry of that period, the next child shall become eligible for the grant of family pension.]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

8. [Where family pension is granted under this rule to a minor, it shall be payable to the guardian of the minor.]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

9B.

[Sanction of family pension.

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

- On receipt of the application for grant, revival or revision of family pension and on being satisfied about the eligibility of the applicant for the family pension, the Secretary shall issue an order in Form X or Form XI, for sanctioning, reviving or revising the pension as the case may be, and communicate the order to the person concerned and to the Accountant-General, Chennai-18 for purpose of audit.]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

9C.

[Suspension of family pension.

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

- If the payment of family pension is suspended under the Act, the Secretary shall communicate an order to that effect in Form XII to the pensioner and to the Accountant-General, Chennai-18.]

9D.

[Claim and payment of family pension.

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

- Family pension shall be claimed by the Authorised Officer without any claim being preferred by the family pensioner in Form XIII by the 25th of every month and credited to the accounts of the family pensioner in the Bank of the month

subsequent to the month to which it relates. The Bank shall furnish a receipt for the amount received by means of cheque.]

9E.

[Declaration by family pensioner.

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

- Every family pensioner, shall furnish a life certificate from the Bank in which he/she is having the account or from an Officer of any State or the Central Government having a seal of Office in Form XIV to the Secretary direct, or through the Bank in which his/her pension is credited, or before the 31st March of every year if such a life certificate is not furnished within a period of one year calculated from the first day of April every year, subsequent payment of family pension shall take effect only from the month of receipt of such life certificate.]

10.

Mistake in the calculation of the pension period.

- A pension sanctioned to any person under these rules is liable to be cancelled or modified if it is found that there has been any error in the valuation of the period of his eligibility for the grant of pension.

11.

Over-payment or irregular payments, etc.

- If any over payments are made, the amounts so over paid shall be adjusted in the subsequent payment or recovered under the Tamil Nadu Revenue Recovery Act, 1864 (Tamil Nadu Act II of 1864), and if any irregular payments are made, such payments shall also be adjusted or recovered, as the case may be, in the same manner.

12.

[Recovery of dues, if any.

[Vide G.O. Ms.No. 1900, Public (Establishment-I), dated the 18th August 1980.]

- Dues, if any, towards arrears of Legislators Hostel Rent, Guest charges, Trunk-call and Phonogram charges, loss of Library Books or any other dues to the [Legislative Assembly] Secretariat or to the Legislative Council Secretariat and dues to the Government of Tamil Nadu payable in the capacity as a Member of the House, from the pensioner, shall be recovered from the pension payable to him.]

12A.

Relinquishment and cancellation of pension.

- Any pensioner may, at any time, relinquish the whole or any portion of the pension payable to him under the Act and the relinquishment so made may be cancelled by him. Every relinquishment or cancellation thereof shall be made in writing and shall take effect from the first day of the month subsequent to the month in which it is made.

12B.

[Claims of former Members of the Council.

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

- These rules shall apply Mutatis Mutandis in respect of former Members of the Council.]

13.

Decision of the Secretary is final.

- The decision of the Secretary on all matters covered by these rules shall be final.

Annexure

[Form-I]

[Vide G. O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

(See rule 4)

Tamil Nadu Legislator's Pension

Form of Application for The Grant of Pension to [Former Legislators]

[Vide G. O. Ms. No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

1.

Name of the applicant (in block letters),

:

2.

Father's name (Husband name in the case of married woman applicant),

:

3.

Permanent residential address showing village or town and district,

:

4.

Particulars of the period during which the applicant was a Member of the Legislature after he 15th day of August 1947,

:

Former Iravancore-Cochin State Legislative Assembly.

From

To

Name of the Constituency (which now forms part of the State of Tamil Nadu)

(Period prior to 1st November 1956 alone need be stated here.)

Former Andhra Pradesh Legislature Legislative Assembly/council.

From

To

Name of the Constituency (which now forms part of the State of Tamil Nadu)

(period prior to 1st April 1960 alone need be stated here.)

Tamil Nadu Legislative Assembly

From

To

Name of the Constituency

(1)

(2)

(3)

(4)

Tamil Nadu Legislative Council

From

To

Name of the Constituency

1.

2.

3.

4.

5.

The House (Assembly or Council) in which he was a Member last

Assembly/ Council

From

To

6.

Identification marks

(1)

(2)

7.

Whether three copies of the photographs are enclosed.

8.

Whether four specimen signatures duly attested are enclosed.

9. []

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

The name of the Nationalised Bank in which the applicant desires to have the pension to be credited (the name of the Bank, place and account number should be clearly specified.)

10. []

[Vide G.O. Ms. No. 2235, Public (Establishment-I), dated the 15th December 1980.]

Whether the

applicant is in receipt of Salary/emoluments from Lok Sabha/Rajya Sabha /any State Legislature as a member, and if so, indicate -

(a) the nature of membership and the amount of salary/emoluments;

(b) the date from which salary/ emoluments is received.

(ii) Whether the applicant is in receipt of Salary/emolument/honorarium from any State or the Central Government or from any company or statutory body owned or controlled by any State or the Central Government and if so, indicate -

(a) the name of the post and office;

(b) the amount of salary/emoluments/honorarium;

(c) the date from which the salary/emoluments/honorarium is received.

(iii) Whether the applicant is in receipt of pension for having been a member of Lok Sabha/Rajya Sabha/any State Legislature and if so, indicate -

(a) the nature of pension and the amount;

(b) the date from which pension is received.

(iv) Whether the applicant is in receipt of any pension from any State or the Central Government or from any Company or Statutory Body owned or controlled by any State or Central Government, and if so, indicate -

(a) the nature of pension and the amount;

(b) the date from which pension is received.

I certify that all the particulars furnished above are true and correct to the best of my knowledge.

Place:

Date:

Signature of the applicant.

To

The Secretary, Tamil Nadu Legislative Assembly, For St. George, Chennai-600 009.

[Form-II]

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

(See rule 5)

Tamil Nadu legislators' Pension Payment Order

L.P.P.O.No.

Dated:

Abstract: Pension-Grant of Legislators' Pension to Thiru/Thirumathi/Selvi son/wife/daughter of Thiru

Reference: From Thiru/Thirumathi/ Selvi application, dated.

Order:

Under section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951) sanction is hereby accorded for the payment of Legislators Pension at the rate of Rs.....(Rupees.....) per mensem to Thiru/Thirumathi/Selviresiding at.....with effect from till death and subject to the Tamil Nadu Legislators Pension Rules, 1977, as amended from time to time.

2. The above said Pensioner was a member of the Tamil Nadu Legislative Assembly/Council from to.....(Total number of completed years should be specified).

3. The identification marks of the pensioner are:

(i)

.....

(ii)

.....

4. The pension hereby sanctioned should be credited to his account in.....

5. The expenditure is debitable to.....

6. This order is liable for cancellation or modification under Rule 10 of the said rules.

Secretary,[legislative Assembly]

[Vide G.O. Ms. No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Secretariat.

To

Thiru/Thirumathi/Selvi.....Address.....

Copy to:

The Accountant-General, Chennai-18.

[Form-III]

[Vide G.O. Ms. No. 1900, Public (Establishment-I), dated the 18th August 1980.]

(See rule 5)

Revival/revision of Legislators Pension Order

Abstract: Legislator's Pensions-Revival/ Revision of.

Reference: 1. L.P.P.O.No.....dated.....

2. Suspension Order No.....dated.....

3. Application, dated.....from Thiru/Thirumathi/Selvi

Order:

The suspension order cited is hereby cancelled with effect from.....Under section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the sanction is accorded to Thiru/Thirumathi/Selvi..... for..... the.....payment of Legislators Pension at.....Rs..... per mensem in the L.P.P.O. cited is hereby revived with effect from consequent on.....

Under section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951) and in partial modification of the L.P.P.O. cited, sanction is hereby accorded for payment of pension of Rs..... to Thiru/Thirumathi/Selvi.....with effect from.....

The above said pensioner was a Member, of the Tamil Nadu Legislative Assembly/Council from..... to..... (Total number of completed years should be specified).

To

Thiru/Tmt./Selvi.....,Address.....

Secretary,[legislative Assembly]

[Vide G.O. Ms.No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Secretariat.

Copy to

The Accountant General, Chennai.

[Form-IV]

[Vide G.O. Ms. No. 1900, Public (Establishment-I) dated the 18th August 1980.]

(See rule 5-A)

Suspension of Legislators Pension Order

Dated.....:

Order No.....

Subject:.....Reference:.....

Under the proviso to section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the pension sanctioned to Thiru/Thirumathi/Selvi..... in L.P.P.O. No..... dated is hereby suspended with effect from consequent on

Secretary,[Legislative Assembly]

[Vide G.O. Ms.No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Secretariat.

To

Thiru / Thirumathi / Selvi.....Address.....

Copy to

The Accountant-General, Chennai-18.

[Form V]

[Vide G.O. Ms.No. 1900, Public (Establishment-I), dated the 18th August 1980.]

(See rule 6)

[Legislator's pension bill]

[Vide G.O. Ms.No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Head of Account.....Month of..... year.....

Number of Pensioners

Gross Amount

Voucher No.

Name of Bank

Total deductions

Net

(1)

(2)

(3)

(4)

(5)

(6)

(Vide Schedule attached).

Counter-signed for Rs..... (Rupees.....)

Authorised Officer,

[Legislative Assembly Secretariat.]

[Vide G.O. Ms.No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Certified that the amount has not been drawn previously.

Passed for the payment of Rs.....(Rupees.....)

Paid Cheque No.....

Dated:.....

Authorised Officer,[Legislative Assembly Secretariat.]

[Vide G.O. Ms.No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

[Schedule]

[Vide G.O. Ms.No. 2235, Public (Establishment-I), dated the 15th December 1982.]

Legislator's Pension for the Month of

Serial Number

L.P.P.O. number

Name and address of the pensioners

Account number

(1)

(2)

(3)

(4)

Name of the Bank and address

Gross amount

Deductions

Net amount

(5)

(6)

(7)

(8)

Rs.P.

Rs.P.

Rs.P.

Authorised Officer,[Legislative Assembly Secretariat.]

[Vide G.O. Ms.No. 484, Public (Establishment-I), dated the 22nd April 1992.]

(For the use of bank only)

Certified that the amount has been credited to the accounts of the Pensioners as detailed in the above Schedule.

Place:

Date:

Signature:Designation:

Form VI

(See rule 6-B)

Declaration

(For the period From.....To.....)

I declare that I am not in receipt of any salary or any emoluments or honorarium other than Travelling Allowance either from any State or the Central Government or from any Company or Statutory Body owned or controlled by any State or the Central Government in India or any pension for having been a Member of the Lok Sabha or Rajya Sabha or any State Legislature.

I also declare that have not been re-elected to Parliament or to the Tamil Nadu Legislative Assembly and I am not a sitting Member of Parliament or of any other State Legislatures in India.

I am in receipt of Rs.....per mensem as pension as.....fromwith effect from.....with effect from.....

Station:Date:

Signature of the Pensioner.

(Score out the portion not applicable)

[Verification Certificate]

[Vide G.O. Ms.No. 759, Public (Establishment-I), dated the 19th August 1994.]

Certified that I have seen the pensioner (Name of the pensioner), holder of Legislator's Pension.....Payment Order No.....in person on this date.

Place:Date:Seal:

NameDesignation of Authorised Officer.

Manager of the Bank in which the pension is credited or any Officer of any State or the Central Government, having a seal of Office.

To

The Secretary,[Legislative Assembly Secretariat,]

[Vide G.O. Ms.No. 484, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

For St. George, Chennai-600 009.

Form VII

(See rule 9-A)

[Particulars of Family For Claim of Legislator's family Pension]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

I,.....Member/Pensioner do hereby furnish the details of the members of my family to receive Legislator's Family Pension in the order shown below which may be granted by the Tamil Nadu Legislative Assembly Secretariat in the event of my death.

Sl. No.

Name and address

Relationship

Date of birth*

Age

(1)

(2)

(3)

(4)

(5)

Signature of the Member/Pensioner.Name in Block Letters.....

Dated:

Witness

1. Signature and Date:.....

Name:.....

Post:.....

2. Signature and Date:.....

Name:.....

Post:.....

* Either copy of Birth Certificate or S.S.L.C. Certificate shall be furnished.

Form VIII

(See rule 9-A)

Form of Application For Grant of Legislators Family Pension

(To be submitted in duplicate with enclosures)

From

Thiru /Tmt. / Selvi.....widow / son/ daughter of late Shri.....

To

The Secretary,Tamil Nadu Legislative Assembly Secretariat,Secretariat, Chennai-600 009 (w/e).

Sir,

Subject: Sanction of Legislator's Family Pension under the Tamil Nadu Payment of Salaries Act, 1961

In terms of sub-section (2-B) of section 12-B of the Tamil Nadu payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), I am entitled to Legislator's family pension as the widow/widower/son/unmarried daughter/father/mother and hereby for grant of family pension. The relevant particulars are enclosed herewith.

Yours faithfully,

Specimen Signature Slip

Family

Pension Payment

Family Pensioner's Name Order No.

Specimen Signature of.....

1.....

2.....

3.....

4.....

Certified that the above specimen signature was signed in my presence.

Date and Seal:

[Signature.....]

[To be attested by an Officer of the State or Central Government having a seal of Office]

Name.....Designation.....

Legislator's Family Pensioner's Photograph

One Photo should be pasted

Signature of family pensioner.....

Certified that the signature and the Photograph are those of

Date and Seal:

[Signature.....]

[To be attested by an Officer of the State or Central Government having a seal of Office.]

Name.....

Designation.....

Form IX

(See rule 9-A)

Form of Application For The Grant of Legislator's family Pension

1.

Name of the Applicant (in Block Letters),:

:

2.

Husband's/Father's Name

:

3.

Date of Birth

:

4.

Date of Death of Pensioner/Member

:

5.

Amount of pension drawn by the Pensioner

:

Amount of Pension entitled to the Member

:

6.

Permanent address of Applicant

:

7.

Name of the Nationalised Bank in which the applicant desires to have the Pension to be credited (the name of the bank, place and account number should be clearly mentioned)

:

8.

Identification Marks

: (i).....

: (ii).....

9.

Whether three copies of the Passport size Photos are enclosed (one should be pasted in the form)

:

10.

Whether four specimen signatures duly attested are enclosed

:

I certify that all the particulars furnished above are true and correct to the best of my knowledge.

Place:

Date:

Signature of applicant.

[Form-X]

[Vide G. O. Ms. No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(See rule 9-B)

Tamil Nadu Legislator's Family Pension Payment Order

Legislators' Family Pension Payment Order

Dated:.....

Abstract: Pension-Grant of Legislator's Family Pension to Thiru/Tmt./Selvi.....son/wife/daughter of late Thiru/Tmt.....

Reference: From Thiru/Tmt. /Selvi..... application, dated.....

Order:

Under sub-section (2-B) of section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), sanction is hereby accorded for the payment of Legislator's family pension at the rate of Rs..... (Rupees.....) per mensem to Thiru/Tmt./Selvi..... residing at.....with effect from/till death /till the attainment of the age of 21 years/24 years or till he/she gets married whichever is earlier and subject to the Tamil Nadu Legislator's Pension Rules, 1977, as amended from time to time.

2. The above said pensioner is the wife/husband/son/daughter /father mother of the deceased member/pensioner Thiru/Thirumathi.....

3. The identification marks of the family pensioner are. -

(i)

.....

(ii)

.....

4. The family pension hereby sanctioned shall be credited to his/her account in.....

5. The expenditure is debitable to.....

Secretary, Legislative Assembly Secretariat.

To

Thiru / Tmt./Selvi.....

Copy to:

The Accountant General, Chennai-18.

[Form-XI]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(See rule 9-B)

Revival/revision of Legislator's family Pension Order

Abstract: Legislator's Family Pension - Revival/Revision of.

Reference: - 1. Legislator's Family Pension Payment Order No.....dated.....

2. Suspension Order No..... dated.....

3. Application dated from Thiru/Tmt./Selvi.....

Order:

The Suspension Order cited is hereby cancelled with effect from.....

Under sub-section (2-B) of section 12-B of the Tamil Nadu Payment of Salaries Act; 1951 (Tamil Nadu Act XX of 1951), the sanction is accorded to Thiru/ Tmt./Selvi for the payment of Legislator's family pension at Rs.....per mensem in the Legislator's Payment of Family Pension Order cited is hereby revived with effect from.....

Under sub-section (2-B) of section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), and in partial modification of the Legislator's Family Pension Payment Order cited, sanction is hereby accorded for the payment of Family Pension of Rs to Thiru/Tmt./Selvi.....with effect from.....

The above said family pensioner is the wife/husband/daughter/father/mother of the deceased member/pensioner

Thiru/Tmt.....

Secretary,Legislative Assembly Secretariat.

To

Thiru/Tmt./Selvi.....

Copy to:

The Accountant-General, Chennai-18

[Form-XII]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(See rule 9-C)

Suspension of Legislator's Family Pension Payment Order

No.....

dated:.....

Sub: Legislator's Family Pension - Suspension of Legislator's Family Pension to

Ref.:.....

Under the proviso to sub-section (2-B) of section 12-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the Legislator's Family Pension sanctioned in Legislator's Family Pension Payment Order No..... dated.....is hereby suspended with effect from consequent on his/her attainment of the age of 21 years/24 years his/her marriage held on.....

Secretary,Legislative Assembly Secretariat.

To

Thiru/Tmt./Selvi.....

Copy to:

The Accountant General, Chennai-18.

[Form-XIIA]

[Vide G.O. Ms.No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(See rule 9-D)

Legislator's Family Pension Bill

Month:.....

Year:.....

Voucher No.:.....

Name of the Bank:.....

Head of Account: -

No. of Family Pensioners

Amount (Rs.)

(Vide Schedule attached)

Counter-signed for Rs.....(Rupees.....)

Authorised Officer,Legislative Assembly Secretariat.

Certified that the amount has not been drawn previously.Passed for payment of Rs.....(Rupees.....)

Authorised Officer,Legislative Assembly Secretariat.

Paid Cheque No.....Date:

(issued in favour of.....)

[form-XIV]

[Vide G.O.Ms No. 1397, Public (Establishment-I and Legislature), dated the 21st December 2001.]

(See rule 9-E)

Life Certificate

Certified that I have seen the Family Pensioner, Thiru/Tmt./..... Wife/Husband/Son/Daughter of (late) Thiru/Tmt.Member/Pensioner.....holder of Legislator's Family Pension Pay Order No.....dated..... and that he/she is alive on this day of.....

Place:Date:

[Signature]

[To be attested by an Officer of the State or Central Government having a seal of Office.]

Name and Designation:

Related AI tags, queries and research notes

Translation